Solmere Gridworks Supply Agreement Excerpt

Executed supply agreement excerpt containing the force majeure clause, notice timing, delivery schedule, and liquidated-damages language for the turbine shipment.

Document Details

Entity:Party

Solmere Gridworks: Buyer

Northcoast Turbine Logistics: Seller

Entity:Contract

Execution Date: 2025-01-12

Notice Deadline: within 48 hours after affected party knew or should have known of the delay event

Notice Method: email plus overnight courier to Buyer legal notice address

Mitigation Duty: commercially reasonable efforts to avoid or overcome delay including alternate port, alternate trucking, partial shipment, and expedited routing if reasonable

Documentation Duty: contemporaneous supporting records required

Rate: 0.5% of delayed lot price per day

Cap: 10% of delayed lot price

Cover Cost Clause: Buyer may recover reasonable cover premium caused by non-excused delay

Delay Allocation Clause: Seller liable only for non-force-majeure portion of delay where multiple causes contribute

Entity:Shipment

Description: 8 turbine control assemblies

Contract Delivery Deadline: 2025-05-16 17:00 local

Contract Price: USD 1,200,000

General

entity:contract.force_majeure.qualifying_events includes flood and government-ordered port closure beyond reasonable control

entity:contract.force_majeure.exclusion excludes internal labor shortage, equipment breakdown, and supplier scheduling error

Additional Information

Create a realistic 6-page commercial supply agreement excerpt PDF titled 'Supply Agreement – Solmere GridWorks / Northcoast Turbine Logistics'. Include signature block showing execution date 2025-01-12. The excerpt must contain: (1) Section 4 Delivery Schedule specifying Lot A of 8 turbine control assemblies due no later than Friday 2025-05-16 at 5:00 PM local time, contract price USD 1,200,000; (2) Section 11 Force Majeure defining qualifying events to include flood and government-ordered port closure beyond a party's reasonable control, but expressly excluding internal labor shortages, equipment failures, yard congestion caused by seller, and supplier scheduling error; (3) Section 11.2 Notice requiring seller to notify buyer within 48 hours after it knew or should have known of the delaying event, by email and overnight courier; (4)

Section 11.3 Mitigation requiring commercially reasonable efforts including alternate port, alternate trucking, partial shipment, and expedited routing if reasonable, with contemporaneous documentation; (5) Section 7 Liquidated Damages at 0.5% of delayed lot price per calendar day capped at 10%; (6) Section 12 Buyer cover rights allowing recovery of reasonable cover premium; (7) Section 11.5 delay allocation language stating if delay results from both force majeure and non-excused causes, seller is responsible for the allocable non-force-majeure portion. Format as formal legal PDF text with page numbers and clause numbering.